

Ancient Monuments Preservation Act, 1956

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 14

Ancient Monument Preservation Act, 2013

Date of Publication in Nepal Gazette

2013.7.27

Date of Great Seal and Publication

Amending Acts

1. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
2. Ancient Monument Preservation (Amendment) Act, 2020 2020.11.16
3. Ancient Monument Preservation (Second Amendment) Act, 2027 2027.6.18
4. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
5. Ancient Monument Preservation (Third Amendment) Act, 2043 2043.8.15
6. Ancient Monument Preservation (Fourth Amendment) Act, 2044 2044.6.9
7. Ancient Monument Preservation (Fifth Amendment) Act, 2052 2052.10.25

Date of Certification and Publication

8. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. 2066.10.17
9. Some Nepal Acts Amendment Act, 2072 2072.11.13
10. Amendment of Some Nepal Acts to Make Compatible with the Constitution of Nepal Act, 2075 2075.11.19

Act No. 12 of the Year 2013

An Act Made for the Preservation of Ancient Monuments and Archaeological, Historical or Artistic Objects

Preamble: Whereas it is desirable to maintain peace and order by conserving ancient monuments, controlling the trade of archaeological objects and excavation of sites containing ancient monuments, and by acquiring and preserving ancient monuments and archaeological, historical or artistic objects Amended by Some Nepal Laws (Amendment and Reorganization) Act, 2020.,

This Act is hereby enacted and issued by His Majesty the King Maharajadhiraja on the advice of the Council of Ministers. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Ancient Monument Preservation Act, 2013".

(2) This Act shall come into force immediately throughout Nepal. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Ancient Monument" means a temple, monument, house, shrine, Shiva temple, monastery, gumba, vihara, stupa, etc., which is over one hundred years old and important from the perspective of history, art, science, architecture or architectural art Amended by the Third Amendment., and the said term shall also include the site where the monument is located, human settlements or sites interconnected or separately situated within the same area having

special value from a national or international perspective, remains of ancient human settlements, ruins of ancient monuments, caves, etc. (b) "Archaeological Object" means an object manufactured and used by humans in prehistoric times, or a handwritten genealogy, handwritten manuscript, gold leaf inscription, stone inscription, copper plate inscription, wooden tablet, birch bark manuscript, palm leaf manuscript, paper document, coin, or a house where a historical event occurred or a historically significant person lived, an object used by such a person, items made of stone, wood, clay, ivory, bone, glass, cloth, paper, metal, etc., or any important part of a house attractively constructed with ornamentation, or objects used in such a house, or an idol made with or without ornamentation, a temple of deities, a chaitya, a statue, a paubha painting, Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. an effigy of birds, animals, movable or immovable property, and also any object specified from time to time by the Government of Nepal by publishing a notice in the Nepal Gazette. (c) "Curio" means objects relating to modern handicrafts which are not more than one hundred years old. (d) "Protected Monument Area" means a place or area containing an ancient monument declared as a Protected Monument Area pursuant to Section 3. (e) "Chief Archaeology Officer" means the Director General of the Department of Archaeology. (f) "Preservation" means the work of maintaining the monument in its original condition by making arrangements including fencing, covering, repairing, and keeping the protected monument clean. Amended by the Amendment of Some Nepal Acts to Make Compatible with the Constitution of Nepal Act, 2075.(g) "Local Level" means a Rural Municipality or Municipality. (h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Power to Declare Protected Monument Area: (1) If the Government of Nepal wishes to declare a place or area where an ancient monument is located as a Protected Monument Area, it shall delineate the four boundaries and post a notice thereof in the place where the monument is located and also at a public place nearby. (2) A person dissatisfied with the notice under sub-section (1) may file a complaint with the Government of Nepal within thirty-five days from the date of posting of such notice. (3) The Government of Nepal may render a final decision on the complaint filed under sub-section (2). (4) If a complaint is filed regarding the notice under sub-section (1), after a final decision has been made under sub-section (3), and if no complaint is filed, after the limitation period for filing a complaint has expired, the Government of Nepal may, by publishing a notice in the Nepal Gazette, delineate the four boundaries of a place or area where an ancient monument is located and declare such place or area as a Protected Monument Area. (5) Within a Protected Monument Area, no person shall install telephone or electricity lines, excavate land for water supply or drainage, construct or repair roads, shoot films, hold festivals, fairs, dances, songs, or park vehicles, or paste posters or pictures without obtaining permission from the Department of Archaeology as prescribed. Provided that permission from the Department of Archaeology shall not be required for conducting traditional dances, songs, festivals, or fairs. (6) Within a Protected Monument Area, when any person constructs a new house or building on land owned or possessed by them, or carries out repairs, additions, alterations, or reconstruction of their house or building in a manner that changes its original form, they shall do so in accordance with the standards specified by the Department of Archaeology, matching the style of that area or building. (7) Amended by the Fifth Amendment.A person wishing to construct, repair, add to, alter, or reconstruct a house or building within a Protected Monument Area falling within a Municipality area shall, before the Municipality passes the map submitted by such personAmended by the Fifth Amendment. according to the prevailing law, obtain approval from the Department of Archaeology on such map.Amended by the Fifth Amendment.

The Department of Archaeology, after studying the map received from the Municipality for approval, may grant approval, refuse approval, or grant approval with amendments.

(8) If, while constructing, repairing, adding to, altering, or reconstructing a house or building in a Protected Monument Area, the work is not carried out according to the approved map, the Department of Archaeology may issue an order to stop such construction, repair, addition, alteration, or reconstruction work.

(9) If a house or building constructed, repaired, added to, altered, or reconstructed in defiance of the order issued by the Department of Archaeology under sub-section (8) is not demolished, Amended by the Fifth Amendment. the Urban Development Plan Implementation Committee in areas where the urban plan is approved, and the Chief District Officer of the concerned district in areas where the urban plan is not approved, may order the demolition of such house or building after giving a notice of thirty-five days. A person aggrieved by such order may file a complaint with the Government of Nepal within thirty-five days. The decision of the Government of Nepal regarding such complaint shall be final.

(10) Amended by the Fifth Amendment. If no complaint is filed against the order for demolition of a house or building under sub-section (9), the concerned person shall demolish the house or building within seven days from the date of expiry of the period for filing such complaint; and if a complaint is filed and the Government of Nepal decides to demolish such house or building, the concerned person shall demolish it within twenty-one days from the date of such decision. If the house or building is not demolished within that period, the body or officer that issued such order shall demolish the said house or building, and all expenses incurred in such demolition shall be recovered from the concerned person. 3a. Classification of Ancient Monuments: (1) The Government of Nepal may, from the perspective of ownership, classify ancient monuments into two types: Public Ancient Monuments and Private Ancient Monuments.

(2) The Government of Nepal may, from the perspective of importance, classify ancient monuments into four types: International Importance, National Importance, Provincial Importance, and Local Importance. 3b. Ownership, Preservation, Maintenance and Renovation of Public Ancient Monuments: Added by the Fifth Amendment. The ownership of public ancient monuments shall vest in the Department of Archaeology. The preservation, maintenance and renovation of such public ancient monuments shall be carried out by the Department of Archaeology. 3c. Preservation, Maintenance and Renovation of Ancient Monuments under Private Ownership: (1) Added by the Fifth Amendment. The preservation, maintenance and renovation of ancient monuments under private ownership within a Protected Monument Area shall be carried out by the concerned person.

Provided that if it appears necessary for the preservation, maintenance and renovation of private ancient monuments considered important from a national or international perspective to be carried out by the Department of Archaeology, the preservation, maintenance and renovation of such ancient monuments shall be carried out by the Department of Archaeology. (2) To change, maintain, or renovate the original form of ancient monuments, or to demolish such ancient monuments under sub-section (1), the concerned person must obtain approval from the Department of Archaeology. (3) The preservation, maintenance and renovation of ancient monuments under private ownership outside a Protected Monument Area shall be carried out by the Local Level Amended by the Fifth Amendment. or the concerned person under the direction of the Department of Archaeology. Provided that the preservation, maintenance and renovation of private ancient monuments under the Guthi Corporation shall be carried out by the Guthi Corporation under the inspection, technical service and direction of the Department of Archaeology. If such private ancient monuments are not preserved, maintained or renovated by the Guthi Corporation, the Department of Archaeology may itself, without the approval of the Guthi Corporation, or through the Local Level Amended by the Fifth Amendment. or any person, carry out or cause to carry out the preservation, maintenance and renovation of such private ancient monuments. (4) If any person performs any act without obtaining approval or contrary to direction

under sub-section (2) or (3), such person shall be liable to a fine of ten thousand rupees to one hundred thousand rupees or imprisonment for up to six months or both. Added by the Fifth Amendment.3d. Preservation of Ancient Monument Sites and Archaeological Sites: The preservation of ancient monument sites and archaeological sites considered important from a national or international perspective shall be carried out by the Department of Archaeology. Added by the Fifth Amendment.3e. Operation of Religious Temples, Gumbas, etc.: (1) The operator of a religious temple, gumba, etc., shall spend up to fifty percent of the amount of donations and offerings made at such temple or gumba on the preservation of that same temple or gumba and the improvement of its environment. (2) The income and expenditure of donations and offerings made at religious temples and gumbas, and other arrangements related to their operation, shall be as prescribed. Added by the Fifth Amendment.3f.

Power to Grant Exemption from House and Land Tax: The Government of Nepal may, by publishing a notice in the Nepal Gazette, grant exemption from house and land tax payable under the prevailing law on private ancient monuments. Added by the Fifth Amendment.3g. Power to Form Committees: (1) Various committees may be formed to survey and classify ancient monuments, to advise the Department of Archaeology regarding the style or standards of houses or buildings to be constructed on private land within a Protected Monument Area, and to make necessary arrangements for the proper preservation of ancient monuments considered important from a historical and artistic perspective. (2) The formation, functions, duties and powers of the committees under sub-section (1) shall be as prescribed. Added by the Act to Amend Some Nepal Acts to Make Compatible with the Constitution of Nepal, 2075.3h. Preservation of Ancient Monuments by Province and Local Level: (1) At the time of commencement of this section, among the ancient monuments preserved and managed by the Government of Nepal, ancient monuments of provincial importance shall be transferred to the concerned Provincial Government, and ancient monuments of local importance shall be transferred to the concerned Local Level. (2) The preservation and management of ancient monuments transferred under sub-section (1) shall be carried out by the concerned Province and Local Level in accordance with the standards specified by the Department. (3) For the purpose of preservation of ancient monuments transferred under sub-section (1), the Provincial Government or Local Level may declare a Protected Monument Area pursuant to Section 3. 4. Power to Purchase Private Ancient Monuments or Keep under its Preservation: Amended by the Fifth Amendment.(1) Amended by the Third Amendment.If the Government of Nepal considers it necessary from the perspective of preserving the monument and the environment of the monument area, it may purchase, by paying a price based on valuation, an ancient monument which is the private property of any person, or a house or land under private or institutional ownership located within an ancient monument area. (2) If the owner of a protected ancient monument donates it without consideration, the Chief Archaeology Officer may accept it and, after informing the Government of Nepal, register itAmended by the Fifth Amendment. as a public ancient monument and keep it. 5.

Power of Chief Archaeology Officer to Obtain a Bond of Responsibility from Owners of Ancient Monuments with Prior Approval of Government of Nepal: (1) For the permanent protection of a protected ancient monument located in any district, the Chief Archaeology Officer, or a person deputed by him/her, may, with the prior approval of the Government of Nepal, obtain a bond of responsibility from the owners of such ancient monument. In such case, if the owner of the ancient monument fails to provide such bond, the Chief Archaeology Officer shall write to the Chief District Officer requesting him/her to arrange for the security of such ancient monument and to obtain a bond of responsibility as mentioned in sub-section (2) from the owner and also from the Mayor, Deputy Mayor or Member of the concerned MunicipalityAmended by the Fifth Amendment. or the Chairperson, Vice-Chairperson or Member of the Rural MunicipalityAmended by Some

Nepal Acts Amendment Act, 2072., and upon receipt of such letter, the Chief District Officer shall act accordingly. (2) The bond of responsibility mentioned in sub-section (1) shall include the following matters, as well as other matters deemed appropriate:- (a) Care of the monument. (b) Responsibility for the monument and the duties of the person on guard duty for it. (c) Prohibition on the owner of the monument from demolishing, removing, altering, disfiguring, transferring it to any person other than the Government of Nepal, or erecting any other monument near it. (d) Facility for the public or the Government of Nepal or persons deputed by the owner to enter and exit for the purpose of preserving or inspecting the monument. (e) If the land on which the monument is situated is to be sold, it must be offered to the Government of Nepal at a value assessed by a panel of five (panchakirti). (f) That an officer shall be appointed by the Government of Nepal to adjudicate disputes arising from the bond. 6. Chief District Officer to Provide Details of Archaeological Objects in his/her Area: The Chief District Officer of all places, headquarters and mofussil, shall identify archaeological objects existing in his/her area and send a detailed report thereof to the Chief Archaeology Officer for the preservation of such objects. 7. Power to Take Over Private Ancient Monuments or Archaeological Objects: Amended by the Fifth Amendment.(1) If any person damages or seeks to disfigure private ancient monuments or archaeological objects in any way, the Department of Archaeology may take them over by paying a value assessed by a panel of five (panchakirti).

The concerned person may, instead, preserve such ancient monuments or archaeological objects in their original state by executing a deed as prescribed by the Department of Archaeology with the Department.

(2) Even after executing a deed under sub-section (1), if the concerned person fails to preserve such ancient monuments or archaeological objects according to the deed, the Department of Archaeology may take over such ancient monuments or archaeological objects without compensation and keep them under its control. 8. Prohibition of Excavation for Preservation of Ancient Monument: (1) If the Government of Nepal considers it necessary to control the digging of tunnels or blasting of ground with explosives around the place where an ancient monument is located for the preservation of the ancient monument, it may, by publishing a notice in the Nepal Gazette, specify that such tunnels shall not be dug or ground shall not be blasted with explosives.

(2) A person violating sub-section (1) shall be liable to a fine of up to ten thousand rupees or imprisonment for up to one and a half years or both. 9. Protection of Pilgrimage Sites and Temples: The Government of Nepal may make such arrangements as are necessary to prevent misuse or mismanagement of any pilgrimage site or temple under the care of the Government of Nepal pursuant to this Act or of archaeological or historical importance. 10. Right of Entry to a Place of Ancient Historical, Artistic or Religious Importance: Any person desiring to enter any place of ancient historical, artistic or religious importance, whether under the ownership of the Government of Nepal or private ownershipAmended by the Third Amendment., may enter without causing harm to the religious sentiment or established custom and practice of the concerned person. 11. Penalty for Wrongful Obstruction: If any person wrongfully obstructs entry to a place mentioned in Section 10, such person shall be liable to a fine of up to five hundred rupeesAmended by the Third Amendment.. 12.

Penalty: Added by the Fourth Amendment.If any person does any of the following acts in relation to any ancient monument in the possession of the Government of Nepal pursuant to this Act or for which a bond of responsibility has been made under Section 5, Amended by the Third Amendment.or in relation to any archaeological object, such person shall be liable to punishment as follows:- (a) For destroying, demolishing, removing, altering, disfiguring, or stealing any ancient monument, Amended by the Third Amendment.recovery of an amount equivalent to the damage to such ancient monument, and a fine of twenty-five thousand rupees to one hundred thousand rupees or imprisonment for five years to fifteen years or both, (b) For using any ancient monument for unauthorized work or causing damage in any other manner,

Added by the Fifth Amendment. recovery of an amount equivalent to the damage to such ancient monument, and a fine of up to twenty-five thousand rupees or imprisonment for up to five years or both. Added by the Fourth Amendment. (c) For destroying, demolishing, disfiguring, stealing, or unauthorizedly removing or altering any archaeological object, or causing damage in any manner, Added by the Fifth Amendment. recovery of an amount equivalent to the damage to such archaeological object, and a fine of five thousand rupees to one hundred thousand rupees or imprisonment for up to five years or both. Amended by the Second Amendment. 13. Restriction on Transfer, Purchase, Sale, Export or Collection of Ancient Monuments and Archaeological Objects or Curios: (1) It shall not be permissible to export from Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , or to transfer from one place to another or collect at any place even within Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , any historical, archaeological or artistic object specified by the Government of Nepal by publishing a notice in the Nepal Gazette, without the prior approval of the Government of Nepal if transfer or collection is necessary.

Provided that nothing in this provision shall be deemed to obstruct the export, transfer from one place to another within Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , or collection of curios bearing an approved label from the Government of Nepal as mentioned in sub-section (3).

(2) If any person or institution possesses in their personal, traditional or ancestral collections an archaeological object older than one hundred years, the owner of such collection shall register such object at the office specified by the Government of Nepal by publishing a notice in the Nepal Gazette, within the period so specified. Added by the Fifth Amendment. Provided that it shall not be necessary to register family deity idols under this sub-section. Added by the Fifth Amendment. (2a) If any person or institution fails to register archaeological objects at the concerned office within the period under sub-section (2), such office shall give a notice of thirty-five days to the concerned person or institution, specifying that such archaeological objects may be registered upon payment of the fine leviable under sub-section (2b). Added by the Fifth Amendment. (2b) If any person or institution brings archaeological objects in their possession for registration at the concerned office within the period given under sub-section (2a), such office shall register such archaeological objects after imposing a fine of five hundred rupees to five thousand rupees on such person or institution.

If any person fails to register archaeological objects even within the period so given, the Department of Archaeology may, on the recommendation of the concerned office, take over such archaeological objects without compensation.

(3) Any person or institution wishing to engage in, or already engaged in, the business of producing or selling curios shall, within the period specified by the Government of Nepal by publishing a notice in the Nepal Gazette, register their name at the office so specified and obtain a license, and every such produced curio must bear an approved label from the Government of Nepal including the name of the seller.

(4) A purchaser of a curio shall also purchase only a curio bearing an approved label under sub-section (3).

(5) A person or institution violating or attempting to violate sub-sections (1), (2), (3) and (4) shall be liable to a fine of up to twenty-five thousand rupees or imprisonment for up to 5 years or both, and the objects related to the offense shall be confiscated.

(6) If it appears necessary to inspect whether the provisions of this Act are being complied with or not, the

Chief District Officer or an officer specified by the Government of Nepal by publishing a notice in the Nepal Gazette in this regard may, with a warrant, enter and search shops, museums, factories producing or selling ancient monuments or archaeological objects or ancient handicrafts, or warehouses, houses or vehicles where such objects are kept, and arrest the person committing the offense and keep them in police custody according to law. The power to issue a warrant under this sub-section shall vest in the judicial officer hearing the case.

(7) If any person reports to the concerned officer that an offense under this section has been or is about to be committed, and the offender is arrested and convicted, ten percent of the fine imposed on such person shall be given to the informant. 14. Power of Government to Order Sale and Purchase if Likely to be Damaged or Misappropriated: If it appears that any object specified in the notice under Section 13(1) is likely to be damaged or misappropriated, the Government of Nepal may order the sale of such object at a value assessed by a panel of five (panchakirti) and purchase it. 15. Power of Chief Archaeology Officer to Inspect and Ensure Preservation: The Chief Archaeology Officer shall have the authority to inspect whether the deities at pilgrimage sites, which have been traditionally worshipped, are properly kept; and if they are found not to be kept properly, to ensure necessary preservation. 16.

Approval Required for Archaeological Excavation: (1) Any person or institution wishing to conduct archaeological excavation at a place containing an ancient monument shall obtain prior approval from the Government of Nepal as prescribed. (2) If, during excavation carried out by any person or institution with approval under sub-section (1), any object or monument of archaeological importance is discovered, information thereof shall be given to the Department of Archaeology or the Chief District Officer within forty-eight hours, and the Chief District Officer shall immediately inform the Department of Archaeology thereof. (3) Archaeological property obtained from excavation under sub-section (2) shall vest in the Government of Nepal. (4) A person conducting excavation without approval under sub-section (1) shall be liable to a fine of up to twenty-five thousand rupees or imprisonment for up to five years or both. (5) A person conducting excavation without giving information to the Department of Archaeology or the Chief District Officer under sub-section (2) shall be liable to a fine of up to fifteen thousand rupees or imprisonment for up to three years or both. Added by the Fifth Amendment.16a. Special Provisions Regarding Artifacts and Monuments: Notwithstanding anything else written in this Act, the Department of Archaeology may preserve or cause to preserve unique types of artifacts not older than one hundred years and monuments that signify the importance of a certain period. 17. Power of Government to Declare an Area as a Protected Place: (1) If the Government of Nepal considers it necessary for the benefit of archaeological research to control or prohibit the work of searching for or excavating such objects, the Government of Nepal may, by specifying the four boundaries, declare any area as a protected place by issuing a notice. (2) After issuing a notice declaring any area as a protected place under sub-section (1), the Government of Nepal shall make necessary arrangements for excavation with the landowners or landholders of that place and provide reasonable compensation for the house and land required.

Thereafter, the Chief Archaeology Officer or a person deputed by him/her shall go and carry out or cause to carry out the excavation work, and all objects found by searching and digging in that place shall vest in the Government of Nepal.

(3) If any person obstructs the work or actions carried out in the protected place as mentioned in sub-section (2), such person shall be liable to pay damages to the Government of Nepal and also be subject to a fine of up to Rs. 500.00. Added by the Third Amendment.17a. Preservation of Archaeological Objects: (1) Except for archaeological objects under private ownership, all other archaeological objects, wherever obtained, shall

remain under the preservation of the Department of Archaeology.

(2) An archaeological object under the preservation of the Department of Archaeology under sub-section (1) may be given by the Department, on the recommendation of the Chief District Officer, for a specified period for conducting a traditional festival, fair or celebration, upon taking security. Added by the Third Amendment.17b. Foreign Citizen Must Fill Declaration Form to Bring Archaeological Object into Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. : (1) If any foreign citizen wishes to bring into Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 an archaeological object important from the perspective of history, art, science, etc., they may bring it after filling a declaration form according to the prevailing law.

(2) Such person may take out of Nepal Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 the archaeological object brought in after filling a declaration form under sub-section (1) when leaving.

(3) An archaeological object brought in without filling a declaration form under sub-section (1) shall not be taken out of Nepal. Added by the Third Amendment.17c. Delegation of Power: The Chief Archaeology Officer may delegate to any officer any of the powers conferred upon him/her under this Act. Added by the Fifth Amendment.17d. Ancient Monument Preservation Fund: (1) There shall be a fund as prescribed for the preservation of ancient monuments considered important from a historical and artistic perspective.

(2) The amount to be kept in the fund under sub-section (1) and the arrangements for the operation of the fund shall be as prescribed. 18. Protection of Government Employees Acting under this Act: No suit for damages or any kind of case shall lie in any court against any government employee for any act done in good faith under the powers conferred by this Act. 19. Repealed by the Judicial Administration Reform (Fourth Amendment) Act, 2043

Amended by the Ancient Monument Preservation (Amendment) Act, 2020.20.

To be According to Prevailing Nepal Law:* Matters written in this Act shall be according to this Act, and other matters shall be according to the prevailing Nepal law. Provided that the following matters shall be done as follows:- (a) When any court, while acting or causing to act according to other prevailing Nepal law, deals with an ancient monument or archaeological object, regardless of who the owner is, such object shall be sent to the Chief District Officer for transmission to the Department of Archaeology of the Government of Nepal or to a place specified by that Department, and no action such as returning the object to the owner or auctioning it shall be taken. (b) Regarding the value of the object mentioned in clause (a), the Chief District Officer shall assess the value by a panel of five (panchakirti) and recover it and cause it to be provided according to the prevailing Nepal law. Added by the Third Amendment.20a. Replacement or Retention in Original Place: If the owner or guthiyar concerned requests the return of an ancient monument or archaeological object received by the Department of Archaeology pursuant to clause (a) of the proviso to Section 20, in order to replace it or keep it in its original place, submitting a report with the recommendation of the concerned Rural Municipality or Municipality and the Chief District Officer Amended by the Fifth Amendment. Amended by Some Nepal Acts Amendment Act, 2072., the Department of Archaeology may, if it deems fit, return such ancient monument or archaeological object after executing necessary deeds with the concerned owner or guthiyar*. 21. Power to Make Rules: The Government of Nepal may make rules for the implementation of the objectives of this Act.